

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 10, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Segrave, and pursuant to support received by Mr. Roybal and Mr. Laybourn, item #14 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Segrave, item #15 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Segrave and Dr. Aldrich, item #23(b) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on March 27, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a bar & grill liquor license application filed with the City Clerk’s Office for Ace’s Range LLC d/b/a Ace’s Range, 1505 Pioneer Ave., Cheyenne, WY. Public comment was made by: J Brent Kunz, Ace’s Range. Comment was made by the following member of the Governing Body: Dr. Aldrich. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing for a winery permit application filed with the City Clerk’s Office for The Blue Stem Wine House, LLC d/b/a The Blue Stem Wine House, 1909 Warren Ave., Cheyenne, WY. Public comment was made by: Brandon and Virginia Erdmann, The Blue Stem Wine House. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Roybal. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 1.29 acres of land at 5224 Ridge Road (located west of Ridge Road, between Jackson Street and Douglas Street). Public comment was made by: Michael White. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Roybal. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located west of Southwest Drive south of I-80. Reporting for Public Services Committee, Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4497)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LR Low-Density Residential to LR Low-Density Residential for land located west of Southwest Drive south of I-80. Mr. Laybourn moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4498)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located west of Ridge Road, between Jackson Street and Douglas Street -- referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located at 5224 Ridge Road (west of Ridge Road, between Jackson Street and Douglas Street) -- referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential - Medium Density for land located on Lots 1 and 2, Block 1, Twin 22 Subdivision -- referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 12.04, Streets, Sidewalks and Driveways Generally, within Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming, to amend provision Governing contract approvals -- referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE –1st READING – Amending Ordinance No. 4429 updating the City of Cheyenne’s Solid Waste Fee Schedule -- referred to Finance Committee. (Sponsor – Mr. White)

RESOLUTION – Providing for the adoption of a Fund Balance Policy in accordance with the Governmental Accounting Standard Board (GASB) Statement No. 54. Mr. White moved to adopt, seconded by Dr. Aldrich. Motion carried. Voting “yes” – Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Roybal and Mr. White. Voting “no” – Mr. Cook, Mr. Laybourn, Dr.

Rinne and Mr. Segrave. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Dr. Rinne and Mr. Segrave. (#6315)

RESOLUTION – Expressing the will of the Governing Body to consider specified Downtown 6th Penny Tax Project Funds for Infrastructure Enhancements for The Children’s Museum of Cheyenne. (2021 Specific Purpose Option Tax Fund). Mr. White moved to adopt, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Caroline Veit, Board President, Children’s Museum of Cheyenne. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson and Mr. Laybourn. (#6316)

[CA] RESOLUTION – Adopting the Wyoming Region 7 Hazard Mitigation Plan 2023 Update. Motion (per Consent Agenda) carried. (#6317)

[CA] RESOLUTION – Authorizing the Mayor to execute settlement participation forms for the City of Cheyenne to participate in the Settlement Agreements designated as the “Teva, Allergan, CVS, Walgreens, Walmart National Opioid Settlement” (Revenue to City). Motion (per Consent Agenda) carried. (#6318)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 and 16-4-113 -- referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – For naming the median which contains the Historic Airport Fountain, located to the east of the intersection of Central Avenue and East 8th Avenue, to be known as Airport Fountain Park -- referred to Public Services Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program Grant to provide the local match for operating funds for the City of Cheyenne for its Transit Program -- referred to Finance Committee. (Sponsor – Mr. White)

[CA] Business Associate Agreement between the City of Cheyenne, Cheyenne Regional Medical Center, and Dr. Clair White for the Behavioral Health Co-Response Project. (Wyoming Department of Health Grant). Motion (per Consent Agenda) carried. (#7729)

[CA] Professional Services Contract between the City of Cheyenne and Kyle M. Brandon for Public Defender Services (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$54,000.00). (#7730)

[CA] Memorandum of Understanding between the City of Cheyenne and The Church of St. Mary for Olivet Cemetery grounds maintenance, irrigation, operations and administrative services (Revenue to the City). Motion (per Consent Agenda) carried. (#7731)

[CA] Development Agreement between the City of Cheyenne and Whitney Ranch 3rd and 4th Filing, LLC, to outline responsibilities for public infrastructure improvements relating to Whitney Ranch 4th Filing Plat. Motion (per Consent Agenda) carried. (#7732)

[CA] Agreement for the Purchase, Sale and Exchange of Lands between the City of Cheyenne and Sun Valley Estates LLC for the exchange of real property, 15,365 SF, from the City to Sun Valley Estates LLC and 15,366 SF, from Sun Valley Estates LLC to the City, both having an appraised value of \$100,000.00 and generally located south of Raleigh Drive -- referred to Finance Committee.

[CA] Memorandum of Understanding by and between Laramie County, the City of Cheyenne, the Cheyenne Board of Public Utilities, the Cheyenne/Laramie County Board of Health, and the Cheyenne Regional Airport Board regarding the management of the ESRI Enterprise Agreement (Various City Funds) – referred to Finance Committee.

[CA] Telecommunications Right-of-Way License and Use Agreement between the City of Cheyenne and AT&T Corp (Revenue to the City) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7321 for the Development Agreement between the City of Cheyenne and Whitney Ranch, LLC, to outline responsibilities for public infrastructure improvements related to Whitney Ranch 3rd and 6th Filings. Motion (per Consent Agenda) carried. (#7321)

[CA] Contract Modification #1 to Contract #7625 for the Agreement between the City of Cheyenne and the Wyoming Department of Transportation (WYDOT) for a Wyoming Rural Public Transportation grant to assist in providing a local match for operating funds for the Transit Program for Fiscal Year 2023 (5311 WYDOT Grant) -- referred to Finance Committee.

[CA] Consideration of Bid #S-17-23 for an Agreement between the City of Cheyenne and S & S Builders, LLC for the Pioneer Park Hip Roof Shelter. (Development Impact Fees & Community Development Block Grant) Motion (per Consent Agenda) carried (in an amount not to exceed \$115,415.00). (#7733)

Consideration of Bid #E-3-23 for an Agreement between the City of Cheyenne and Goat Green LLC for Vegetation Management for Crow Creek (Optional 1% Sales Tax Fund & Laramie County Weed & Pest Grant). Mr. White moved to approve in the amount of \$160,000.00, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Laybourn. (#7734)

[CA] Consideration of Bid #E-16-23 for a City Network Operations Core Layer 3 Switch Replacement (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-17-23 for the surplus sale of one (1) used reel grinder and one (1) used bedknife grinder (Revenue to the City) – referred to Finance Committee.

[CA] Consideration of Bid #E-18-23 for a Professional Services Agreement between the City of Cheyenne and Vector Disease Control International (VDCI) for Mosquito Site Testing and Mosquito Larvicide Application (Weed & Pest Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-18-23 for an Agreement between the City of Cheyenne and S & S Builders, LLC for the Greater Cheyenne Greenway, Greenway Commons Retaining Wall Re-Construction (2017 and 2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Econolite for traffic controller cabinets, controllers and conflict monitors for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Request to relocate one dispensing area relating to City of Cheyenne Restaurant Liquor License held by Capitol Cinema 16, located at 3410 Concord Rd., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Jim Ridgeway and Mr. Esquibel commented on the Voucher Report as presented.

Announcement was made for a Public Hearing to be held April 24, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for disposal of real property and land exchange between the City for Cheyenne and Sun Valley Estates LLC (generally located south of Raleigh Drive).

Announcement was made of a Public Hearing to be held April 24, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a bar and grill application filed with the City Clerk’s Office for FAFO Restaurant Group LLC d/b/a Dog Haus Restaurant, 3838 Atkins St., Cheyenne, WY.

Announcement was made of a Public Hearing to be held April 24, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for the City of Cheyenne’s Annual Action Plan Program Year 2023 prepared by the Cheyenne Housing and Community Development office.

Public comment was made by the following individuals under other business: Jim Ridgeway, Marlena Schultz, Dog Haus Restaurant, Michael White, and Mead Kelsey.

The following members of the governing body made comments under other business: Dr. Aldridge, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:07 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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